

25STCV06501 25STCV06501

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV06501 Hearing Date: September 28, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: Monday,
September 28, 2026

CASE NUMBER: 25STCV06501

CASE NAME: David L. Lim, et al. vs. Yolette Vasquez

MOVING PARTY: Defendant Yolette Vasquez

OPPOSING PARTY: Plaintiffs David L. Lim and Chery
C. Lim, as Trustees of the Lim Family Trust dated 1/14/99

PROCEEDING: MOTION TO SET
ASIDE/VACATE DEFAULT, DEFAULT JUDGMENT

RULING SUMMARY: Defendant's Motion to Set Aside default and default judgment
is denied.

Background

On March 7, 2025, David L. Lim and Chery
C. Lim, as Trustees of the Lim Family Trust dated 1/14/99 (collectively,
"Plaintiffs") filed an Unlawful Detainer Complaint against Yolette Vasquez
("Defendant") and Does 1 to 25.

On July 11, 2025, Plaintiffs filed a First Amended Complaint

("FAC") alleging causes of action for (1) breach of lease; (2) quantum meruit; (3) open book account; and (4) account stated.

On December 2, 2025, the Court entered Default Judgment against Defendant in the total of \$83,060.08.

Defendant moves to set aside and/or vacate the Default Judgment. Plaintiffs oppose the Motion.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request that the Court take judicial notice of: (1) the Grant Deed to the property located at "6027, 6027 ½, 6029 Ferguson Dr., Los Angeles, CA 90022 (APN 6338-022-021) recorded in the official records of the Recorder's Office of Los Angeles County, California on March 21, 2023 as Document No. 20230180507 and requested by Luis Reyes Vasquez;" and (2) the Grant Deed for the property located at 6031 Ferguson Dr., Los Angeles, CA 90022 (APN 6338-022-018) recorded in the official records of the Recorder's Office of Los Angeles County, California on March 21, 2023 as Document No. 20230180521 and requested by Luis Reyes Vasquez. (RJN ¶¶ 1-2; Chang Decl., Exs. E-F.) (Evid. Code § 452, subds. (c), (h).)

Defendant objects only to the use of these records to establish disputed factual conclusion. (Response to RJN at p. 1.)

The request is granted. (Evid. Code § 452, subds. (c), (h); see *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23, 37.) The Court takes judicial notice of these documents only as to "the existence, content and authenticity of public records and other specified documents;" it does not take judicial notice of the truth of any factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

LEGAL STANDARDS

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to

the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) A judgment is void when service was improper. (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1226.) Knowledge of the action by a defendant does not satisfy the requirement of adequate service. (Ibid.)

“When service of a summons was lawfully effected but has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of:

- (i) two years after entry of a default judgment against the party; or
- (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).)

“A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Id., subd. (b).)

“Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.” (Id., subd. (c).)

DISCUSSION

Pursuant to Code of Civil Procedure sections 473, subdivision (d) and 473.5, Defendant moves the Court to set aside and/or vacate the Default Judgment on the grounds that the judgment is void due to lack of valid service of summons and complaint.

Defendant argues that the Proof of Service falsely states that she was served at 6031 Ferguson Drive, Los Angeles, CA 90022, because she has never resided at this address. (Mot., at p.1.) Defendant asserts that the address is not associated with her driver's license, and because she was not personally served, she has not had an opportunity to appear. (Vasquez Decl., ¶¶ 6-7.) ٤٤

As a preliminary issue, the Court notes that Defendant has failed to file a copy of a proposed pleading, in violation of the provisions in Code of Civil Procedure section 473.5, subdivision (b). Accordingly, Defendant has failed to properly move under this section.

Plaintiffs argue in opposition that Defendant's motion also fails under Code of Civil Procedure section 473, subdivision (d), because Defendant has failed to overcome the rebuttable presumption of valid service. (Opp., at p. 5.)

Code of Civil Procedure section 415.10 provides that a summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.

The filing of a proof of service creates a rebuttable presumption that the service was proper, provided that the proof complies with the statutory requirements. (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441.) These proofs of service must also include the county in which the process server is registered and the process server's registration number. (Code Civ. Proc., § 417.40; Bus. & Prof. Code §§ 22350, 22360.) Finally, the proofs of service must be filed with the court clerk when defendants have not made a general appearance in this lawsuit. (Code Civ. Proc., § 417.30.) In addition, under Evidence Code section 647, return of a registered process server upon process "establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."

Plaintiffs filed a Proof of Service on September 8, 2025, that indicated personal service was effected at 6031 Ferguson Drive, Los Angeles, CA 90022 ("6031 Property") on September 1, 2025, at 4:03 PM. (Chang Decl., Ex. B.) Luis Verjan, a registered process server in Los Angeles County (201851867), served the papers on Defendant. (Id.) The Proof of Service creates a rebuttable presumption that service was proper.

Plaintiffs offer further evidence in support of proper service. An email from the Process Server company to Plaintiffs' counsel on September 2, 2025, indicates that the initial address provided, 6027 Ferguson Dr., Los Angeles, CA 90022 ("6027 Property") was incorrect, and the owner of the property, Defendant's father, stated Defendant lives next door at the 6031 Property. (Chang Decl., Ex. A.) Mr. Verjan went to the 6031 Property and "was able to personally serve the subject." (Id.) On August 11, 2026, a supplemental declaration was submitted with the Proof of Service reiterating the statements in the email; Mr. Verjan also stated that he spoke with Defendant at the 6031 Property, that she confirmed her identity, and that she accepted the papers after he explained their general nature. (Chang Decl., Ex. D.) He described Defendant as a Hispanic, brown-eyed woman in her 40s who weighed about 140 pounds and is 5'5. (Id.) The Grant Deeds of which the Court has taken judicial notice indicate that Luis Reyes Vasquez, Defendant's father, owns the 6027 Property and 6031 Property. (Chang Decl., Exs. E-F.)

Plaintiffs' counsel also states that on November 20, 2025, she had a telephone call with Defendant to discuss the lawsuit, during which time Defendant stated that "she was not liable under the lease because it had been assigned to another party" and that she intended to file for bankruptcy should a default judgment be entered against her. (Chang Decl., ¶ 7.) Defendant also indicated that she had moved from the property located at 8988 Kennedy St., Jurupa Valley, CA 92509 – the most recent residence listed on Lexis SmartLinx Person Report – due to a breakup after counsel indicated Plaintiffs were unsuccessful at serving her at this address. (Id., Ex. G.)

Based on the foregoing, the burden shifts to Defendant to rebut the presumption of proper service.

Defendant provides her declarations as evidentiary support that service was not proper. Defendant declares that: (1) she was not personally served; (2) she is 5'1 and 105 pounds; (3) she did not reside at the 6031 Property at the time of service; (4) the supplemental declaration was created in July, months after service was allegedly effected; (5) the Grant Deed and Lexis evidence do not establish service or her physical location; and (6) her later communications with counsel do not establish service. (Reply Decl., ¶¶ 1-10.) Exhibit A, attached to the Reply in support of the Motion to Quash but noticed in support of the

operative motion, states that Defendant's height and weight on September 11, 2026, was 108 pounds and 60.50 inches. (Reply MTQ, Ex. A.)

Defendant has failed to rebut the presumption of proper service. Defendant's declaration that she was not the individual served at the 6031 Property is less credible than Plaintiffs' showing (i.e., Proof of Service, her father's ownership of the 6031 Property, and the process server's declaration, as well as Plaintiffs' counsel's declaration regarding communications with Defendant). Defendant's statements in her declaration are conclusory. She has not provided a copy of her license or any other documentation to support her statements that she was not at 6031 Property. Defendant has not provided declarations from anyone else, including her father, to dispute Plaintiffs' evidence. In addition, Defendant's medical information from September 11, 2026, do not make her more credible, because the health information was taken more than a year after alleged service and weight fluctuates; the description was also an estimate, and the difference is not material. Accordingly, Defendant has not shown that the Default Judgment was void.

For the reasons explained above, the Court denies the Motion to Set Aside/Vacate. ㄥㄥ

Conclusion

defendant's
Motion to Set Aside/Vacate default and default judgment is denied.

Date: September 28, 2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court

TENTATIVE
RULING

HEARING DATE: September
28, 2026

CASE NUMBER: 25STCV06501

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MOVING PARTY: Defendant Yolette Vasquez

OPPOSING PARTY: Plaintiffs David L. Lim and Chery
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(3) open book account; and (4) account stated.

On December 2, 2025, the Court entered
Default Judgment against Defendant in the total of \$83,060.08.

Defendant moves to quash the service of
summons and complaint. Plaintiffs oppose the Motion.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request that the Court
take judicial notice of (1) the Grant Deed to the property located at "6027,
6027 ½, 6029 Ferguson Dr., Los Angeles, CA 90022 (APN 6338-022-021) recorded in
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Code § 452, subds. (c), (h); see *Kalnoki v. First American Trustee Servicing*

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notice of these documents only as to "the existence, content and authenticity

of public records and other specified documents;" it does not take judicial

notice of the truth of any factual matters asserted in those documents. (*Dominguez*

v. Bonta (2022) 87 Cal. App. 5th 389, 400.)

LEGAL STANDARDS

"A defendant,

on or before the last day of his or her time to plead . . . may serve and file

a notice of motion . . . [t]o quash service of summons on the ground of

lack of jurisdiction of the court over him or her." (Code Civ.

Proc., § 418.10, subd. (a)(1).) By filing such motion, "a

defendant makes a special appearance for the narrow purpose of contesting

personal jurisdiction where the summons is defective." (*Stancil*

v. Sup. Ct. (2021) 11 Cal.5th 381, 393.)

"California

is a jurisdiction which in general requires strict statutory compliance with requirements

for service of original process." (*In re Abrams* (1980) 108

Cal.App.3d 685, 693-694.) "Until statutory requirements are satisfied,

the Court lacks jurisdiction over a defendant." (*Ruttenberg v.*

Ruttenberg (1997) 53 Cal.App.4th 801, 809.)

"In the

absence of a voluntary submission to the authority of the court, compliance

with the statutes governing service of process is essential to establish

that court's personal jurisdiction over a defendant." (*Floveyor International,*

Ltd. v. Sup. Ct. (1997) 59 Cal.App.4th 789, 793; see also

Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 961 ["To

establish personal jurisdiction, it is essential to comply with the statutory procedures for service of process.”].) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160, internal quotations omitted.)

California

Rules of Court, rule 3.110, subdivision (b) provides that a summons and complaint must be served on each defendant and a proof of service on each defendant must be filed with the court within 60 days after the complaint is filed. Proof of such service must be made by affidavit of the person making the service “showing the time, place, and manner of service” and including facts showing service was made in accordance with California law. (Code Civ. Proc., §§417.10, subd. (a), 417.30.) Proof of personal service must be made on a form adopted by the Judicial Council. (Id., § 417.10, subd. (f).)

“A summons

may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective.” (Code Civ. Proc., § 415.10.)

If personal

service is not possible with reasonable diligence, “a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., §415.20, subd. (b).)

discussion

Pursuant to Code of Civil Procedure section

418.10(a)(1), Defendant moves the Court to quash service of the Summons and Complaint by Plaintiffs on the grounds that absent service by a statutorily authorized means, the Court has not acquired jurisdiction over Defendant.

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Defendant lacks standing to bring the operative motion because she remains in default. Moreover, in denying concurrently Defendant's Motion to Set Aside or Vacate Default and Default Judgment, the Court concludes that Plaintiff has failed to rebut the presumption of proper service and notice to Defendant.

Based on the foregoing, the Court denies the Motion to Quash. ¿¿

Conclusion

defendant's

Motion to Quash is denied.

Date: September 28, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court